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Counterfactual Merits Judgment

Filed: June 8, 2026 Docket No. SYN-CA4-26-CV-4102-CF-NEVER-OCCURRED

United States Court of Appeals for the Fourth Circuit

Proceeding: Judgment following decision on the supported-certification appeal.

Asterglen Freight Software, Inc., Appellant, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Appellees.

In accordance with the opinion filed this date, the Court holds that the district court's February 4, 2026 certification satisfied Federal Rule of Civil Procedure 54(b). The district court finally disposed of Count I, expressly determined that there was no just reason for delay, and supported that determination with findings addressing the relationship of the remaining claim, possible mootness, repeated review, setoff, and equitable considerations. Appellate jurisdiction exists under 28 U.S.C. § 1291.

The judgment of the United States District Court for the Northern District of West Virginia dismissing Count I with prejudice in favor of Copper Kestrel Logistics, LLC and against Asterglen Freight Software, Inc. is **AFFIRMED**.

This judgment does not decide narrowed Count II against Meridian Silt Holdings, LLC. That claim remains pending in the district court. Copper Kestrel's former amended counterclaim remains dismissed with prejudice.

Costs and Issuance

Taxable appellate costs are awarded to Copper Kestrel Logistics, LLC against Asterglen Freight Software, Inc. to the extent allowed by Federal Rule of Appellate Procedure 39 and timely documented. No costs are awarded for or against Meridian Silt because the certified merits disposition concerns Count I against Copper Kestrel.

The Clerk shall issue this judgment on June 8, 2026 and send a certified copy to district Docket No. SYN-NDWV-25-CV-0618-CF-NEVER-OCCURRED. The ordinary fourteen-day deadline for a petition for panel rehearing or rehearing en banc under Federal Rule of Appellate Procedure 40 is June 22, 2026. If no timely petition, stay, or superseding order intervenes, mandate is scheduled to issue under Federal Rule of Appellate Procedure 41 on June 29, 2026.

The district court may continue proceedings on narrowed Count II. Neither the pendency of the appellate cost process nor the interval before mandate independently stays that separate claim. The affirmance leaves the February 4 partial judgment intact and does not remand Count I for additional proceedings.

Entered at the direction of the Court on June 8, 2026.

Clerk, United States Court of Appeals for the Fourth Circuit Authorized clerk designation

AFFIRMED